

STATE OF IOWA
KIM REYNOLDS
GOVERNOR

June 6, 2025

The Honorable Paul Pate
Secretary of State of Iowa
State Capitol
Des Moines, Iowa 50319

Dear Mr. Secretary,

I hereby transmit:

Senate File 588, an Act concerning local government notice requirements on certain actions.

The above Senate File is hereby approved on this date.

Sincerely,

A handwritten signature in black ink, reading "Kim Reynolds".

Kim Reynolds
Governor of Iowa

cc: Secretary of the Senate
Clerk of the House



Senate File 588

AN ACT
CONCERNING LOCAL GOVERNMENT NOTICE REQUIREMENTS ON CERTAIN
ACTIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

Section 1. Section 24.2A, subsection 4, paragraph b, subparagraph (2), Code 2025, is amended to read as follows:

(2) If the political subdivision is a city, notice of the public hearing shall be published ~~not less than ten nor more than twenty days prior to the hearing~~ pursuant to section 362.3 in a newspaper published at least once weekly and having general circulation in the city. However, if the city has a population of two hundred or less, publication may be made by posting in three public places in the city.

Sec. 2. Section 28E.17, subsection 3, paragraph a, subparagraph (1), Code 2025, is amended to read as follows:

(1) The council shall give notice and conduct a hearing on the proposal in the manner set forth in section 384.25. ~~However, the notice must be published at least ten days prior to the hearing, and if~~ If a petition valid under section 362.4 is filed with the clerk of the city prior to the hearing, asking that the question of issuing the bonds be submitted to the registered voters of the city, the council shall either by resolution declare the proposal abandoned or shall direct the county commissioner of elections to call a special election to vote upon the question of issuing the bonds. Notice of the election and its conduct shall be in the manner provided in

section 384.26.

Sec. 3. Section 103A.12, subsection 2, Code 2025, is amended to read as follows:

2. A governmental subdivision in which the state building code is applicable may by ordinance, at any time after one year has elapsed since the code became applicable, withdraw from the application of the code. The local governing body shall hold a public hearing pursuant to section 362.3, ~~after giving not less than four but not more than twenty days' public notice,~~ together with written notice to the commissioner of the time, place, and purpose of the hearing, before the ordinance to withdraw is voted upon. A certified copy of the vote of the local governing body shall be transmitted within ten days after the vote is taken to the commissioner. The ordinance becomes effective at a time to be specified in the ordinance, which must be not less than one hundred eighty days after the date of adoption. Upon the effective date of the ordinance, the state building code ceases to apply to the governmental subdivision except that construction of a building or structure pursuant to a permit previously issued is not affected by the withdrawal.

Sec. 4. Section 368.3, subsection 2, Code 2025, is amended to read as follows:

2. A city may also be discontinued in accordance with the following procedures. The council shall adopt a resolution of intent to discontinue and shall call a public hearing on the proposal to discontinue. Notice of the time and place of the public hearing and the proposed action shall be published as provided in section 362.3, ~~except that at least ten days' notice must be given.~~ At the public hearing, the council shall receive oral and written comments regarding the proposal from any person. Thereafter, the council, at the same meeting or at a subsequent meeting, may pass a resolution of discontinuance or pass a resolution abandoning the proposal. If the council passes a resolution of discontinuance, a petition may be filed with the clerk in the manner provided in section 362.4, within thirty days following the effective date of the resolution, requesting that the question of discontinuance be submitted to the registered voters of the city. Upon receipt of a petition requesting an election, the council shall direct the

county commissioner of elections to call a special election on the question of discontinuance or shall adopt a resolution abandoning the discontinuance. Notice of the election shall be given by publication as required in section 49.53. If a majority of those voting approve the discontinuance or if no petition for an election is filed, the clerk shall send a copy of the resolution of discontinuance and, if an election is held, the results of the election to the board. The board shall take control of the property of the discontinued city and shall supervise procedures necessary to carry out the discontinuance in accordance with section 368.21.

Sec. 5. Section 368.15, Code 2025, is amended to read as follows:

368.15 Public hearing.

The committee shall conduct a public hearing on a proposal as soon as practicable. Notice of the hearing must be served upon the council of each city for which a discontinuance or boundary adjustment is proposed, the county board of supervisors for each county ~~which~~ that contains a portion of a city to be discontinued or territory to be incorporated, annexed, or severed, and any regional planning authority for the area involved. A notice of the hearing, which includes a brief description of the proposal and a statement of where the petition or plan is available for public inspection, must be published as provided in section 362.3, ~~except that there must be two publications in a newspaper having general circulation in each city and each territory involved in the proposal.~~ Any person may submit written briefs, and, in the committee's discretion, may be heard on the proposal. The board may subpoena witnesses and documents relevant to the proposal.

Sec. 6. Section 372.4, subsection 4, Code 2025, is amended to read as follows:

4. In a city having a population of less than five hundred, the city council may adopt a resolution of intent to reduce the number of council members from five to three and shall call a public hearing on the proposal. Notice of the time and place of the public hearing shall be published as provided in section 362.3, ~~except that at least ten days' notice must be given.~~ At the public hearing, the council shall receive oral and written

comments regarding the proposal from any person. Thereafter, the council, at the same meeting as the public hearing or at a subsequent meeting, may adopt a final resolution to reduce the number of council members from five to three or may adopt a resolution abandoning the proposal. If the council adopts a final resolution to reduce the number of council members from five to three, a petition meeting the same requirements specified in section 362.4 for petitions authorized by city code may be filed with the clerk within thirty days following the effective date of the final resolution, requesting that the question of reducing the number of council members from five to three be submitted to the registered voters of the city. Upon receipt of a petition requesting an election, the council shall direct the county commissioner of elections to put the proposal on the ballot for the next regular city election. If the ballot proposal is adopted, the new council shall be elected at the next following regular city election. If a petition is not filed, the council shall notify the county commissioner of elections by July 1 of the year of the regular city election and the new council shall be elected at that regular city election. If the council notifies the commissioner of elections after July 1 of the year of the regular city election, the change shall take effect at the next following regular city election. The council shall determine by ordinance whether the three council members are elected at large or by ward.

Sec. 7. Section 384.16, subsection 3, Code 2025, is amended to read as follows:

3. Following, and not until, completion of requirements of section 24.2A ~~are completed~~, the council shall set a time and place for public hearing on the budget before the final certification date and shall publish notice of the hearing ~~not less than ten nor more than twenty days before the hearing~~ pursuant to section 362.3 in a newspaper published at least once weekly and having general circulation in the city. However, if the city has a population of two hundred or less, publication may be made by posting in three public places in the city. A summary of the proposed budget and a description of the procedure for protesting the city budget

under section 384.19, in the form prescribed by the director of the department of management, shall be included in the notice. Proof of publication of the notice under this subsection 3 must be filed with the county auditor. The department of management shall prescribe the form for the public hearing notice for use by cities.

Sec. 8. Section 384.38, subsection 3, paragraph a, Code 2025, is amended to read as follows:

a. A city may establish, by ordinance or by resolution adopted as an ordinance after ~~twenty days'~~ notice published in accordance with section 362.3, and a public hearing, one or more districts and schedules of fees for the connection of property to the city sewer or water utility. If the governing body directs that notice be made by mail, the notice shall be as required in section 384.50. Each person whose property will be served by connecting to the city sewer or water utility shall pay a connection fee to the city. The ordinance shall be certified by the city and recorded in the office of the county recorder of the county in which a district is located. The connection fees are due and payable when a utility connection application is filed with the city. A connection fee may include the equitable cost of extending the utility to the properties, including reasonable interest from the date of construction to the date of payment. All fees collected under this subsection shall be paid to the city treasurer. The moneys collected as fees shall only be used for the purposes of operating the utility, or to pay debt service on obligations issued to finance improvements or extensions to the utility.

Sec. 9. Section 384.50, subsection 1, Code 2025, is amended to read as follows:

1. The clerk shall publish notice of the date, time, and place of the hearing once each week for two consecutive weeks in the manner provided by section 362.3, ~~the first publication of which shall be not less than ten days before the date of the hearing.~~

Sec. 10. Section 400.1, subsection 1, Code 2025, is amended to read as follows:

1. In cities having a population of eight thousand or over and having a paid fire department or a paid police department,

the mayor, one year after a regular city election, with the approval of the council, shall appoint three civil service commissioners. The ~~mayor~~ city shall publish notice of the names of persons selected for appointment ~~no less than thirty days prior to a vote by the city council pursuant to section 362.3.~~ Commissioners shall hold office, one until the first Monday in April of the second year, one until the first Monday in April of the third year, and one until the first Monday in April of the fourth year after such appointment, whose successors shall be appointed for a term of four years. In cities having a population of more than seventy thousand, the city council may establish, by ordinance, the number of civil service commissioners at not less than three.

Sec. 11. Section 404.2, subsection 6, Code 2025, is amended to read as follows:

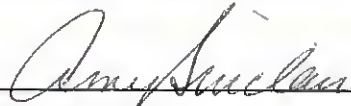
6. The city or county has adopted the proposed or amended plan for the revitalization area after the requisite number of hearings. The city or county may subsequently amend this plan after a hearing. Notice of the hearing shall be published as provided in section 362.3 or 331.305, ~~except that at least seven days' notice must be given and the public hearing shall not be held earlier than the next regularly scheduled city council or board of supervisors meeting following the published notice.~~ A city ~~which~~ that has adopted a plan for a revitalization area ~~which~~ that covers all property within the city limits may amend that plan at any time, pursuant to this section, to include property ~~which~~ that has been or will be annexed to the city. The provisions of the original plan shall be applicable to the property ~~which~~ that is annexed and the property shall be considered to have been part of the revitalization area as of the effective date of its annexation to the city.

Sec. 12. Section 414.4, Code 2025, is amended to read as follows:

414.4 Zoning regulations, district boundaries, amendments.

The council of the city shall provide for the manner in which the regulations and restrictions and the boundaries of the districts shall be determined, established, and enforced, and from time to time amended, supplemented, or changed.

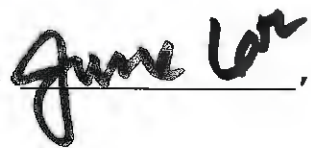
However, the regulation, restriction, or boundary shall not become effective until after a public hearing at which parties in interest and citizens shall have an opportunity to be heard. The notice of the time and place of the hearing shall be published as provided in section 362.3, ~~except that at least seven days' notice must be given and in no case shall the public hearing be held earlier than the next regularly scheduled city council meeting following the published notice.~~

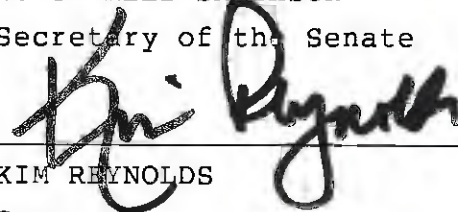

AMY SINCLAIR
President of the Senate


PAT GRASSLEY
Speaker of the House

I hereby certify that this bill originated in the Senate and is known as Senate File 588, Ninety-first General Assembly.


W. CHARLES SMITHSON
Secretary of the Senate

Approved , 2025


KIM REYNOLDS
Governor